

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: August 18, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER DISALLOWING REPLY BRIEF

On August 15, 2025, Complainant filed Complainant's Reply Brief in Support of Motion for Summary Judgment ("Reply").

Commission Rule 70(c) provides: "A reply to the response to a dispositive motion may be filed within 7 days after the date of service of the response to the motion." (46 C.F.R. § 502.70(c)). In addition, Commission Rule 70(e) provides: "Neither the motion nor the response may exceed 30 pages, excluding exhibits or appendices, without leave of the presiding officer. A reply may not exceed 15 pages." (46 C.F.R. § 502.70(e)).

Complainant filed a Motion for Summary Judgment ("MSJ") on July 16, 2025, along with an accompanying statement of material facts. On July 31, 2025, Respondent filed a motion requesting additional time to respond to the MSJ, which I granted by means of an order dated July 31, 2025. (Order Granting Respondent's Motion for Reconsideration (the "July 31 Order")). The July 31 Order noted that Respondent's response to the MSJ was due on August 5, 2025, and that Complainant's reply was due on August 12, 2025, which was 7 days later. (*See* July 31 Order, at 2).

The Reply, which is 25 pages without exhibits, was filed August 15, 2025. Because it is both untimely and over the page limit, it is disallowed and **HEREBY STRICKEN**. Complainant, however, may attempt to refile the Reply with an accompanying motion for untimely filing that complies with Commission Rule 102. (46 C.F.R. § 502.102). Complainant may also ask for an extension of the page limit, or reduce the size of the Reply. Any motion for untimely filing must be filed no later than **August 22, 2025**.

**Richard C.
Ambrow Jr -S**

Richard Ambrow
Administrative Law Judge

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C. Ambrow Jr -S
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